

Yogendra v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 3 January 2013 · Writ-C No. 16553 of 2012 · **Writ dismissed as withdrawn; no liberty to file afresh.**

HEADNOTE

Writ challenging a 2 March 2012 electricity-theft assessment on the ground that the assessing officer was not authorised under clause 7.3(I) of the U.P. Electricity Supply Code, 2005 was dismissed as withdrawn. Interim protection was vacated and no liberty was given to file a fresh writ on the same cause of action. The clause 7.3(I) question was not decided.

FACTUAL SUMMARY

Yogendra challenged a 2 March 2012 theft assessment by U.P. Power Corporation Ltd. and others, alleging that respondent no.4 was not authorised under clause 7.3(I) of the U.P. Electricity Supply Code, 2005 to assess electricity theft. The writ was connected with Writ-C No. 38711 of 2011. The Court first stayed further action on the assessment, then continued the stay only if the petitioner filed a bank guarantee of half the provisional amount within three weeks and paid future charges. He later sought withdrawal.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.3(I)

theft-assessment-authority

HOLDING

On the petitioner's statement and withdrawal application, the writ challenging the 2 March 2012 theft assessment as unauthorised under clause 7.3(I) of the U.P. Electricity Supply Code, 2005 was dismissed as withdrawn. The interim order was vacated and no liberty was granted to file a fresh writ on the same cause of action. ¶ **unnumbered**

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RESPONDENT NO.4 WAS AUTHORISED UNDER CLAUSE 7.3(I) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 TO MAKE ASSESSMENT OF ELECTRICITY THEFT.

Treated as making out a prima facie case for interim stay of the 2 March 2012 assessment; the writ was later withdrawn without a merits decision.